

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Julia Vittore	Team: Squad #15	CCRB Case #: 202203131	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 05/13/2022 10:15 PM, Friday, 05/13/2022 10:15 PM	Location of Incident: Northeast corner of Clinton Street and Centre Mall; 76th Precinct Stationhouse	18 Mo. SOL 11/13/2023	Precinct: 76		
Date/Time CV Reported Mon, 05/16/2022 6:22 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 05/16/2022 6:22 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DTS Damien Clarke	03510	933698	076 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Vegnel Jovin	02695	960737	076 PCT

Officer(s)	Allegation	Investigator Recommendation
A . DTS Damien Clarke	Abuse: At the northeast corner of Clinton Street and Centre Mall in Brooklyn, Detective Damien Clarke stopped the vehicle in which § 87(2)(b) was an occupant.	A . Within NYPD Guidelines
B . DTS Damien Clarke	Discourtesy: At the northeast corner of Clinton Street and Centre Mall in Brooklyn, Detective Damien Clarke spoke discourteously to § 87(2)(b)	B . Substantiated
C . DTS Damien Clarke	Abuse: At the northeast corner of Clinton Street and Centre Mall in Brooklyn, Detective Damien Clarke conducted a retaliatory arrest against § 87(2)(b)	C . Substantiated
D . DTS Damien Clarke	Discourtesy: At the 76th Precinct Stationhouse, Detective Damien Clarke spoke discourteously to § 87(2)(b)	D . Unable to Determine
E . DTS Damien Clarke	Abuse: At the 76th Precinct Stationhouse, Detective Damien Clarke threatened § 87(2)(b) with the use of force.	E . Unable to Determine
F . DTS Damien Clarke	Abuse: At the northeast corner of Clinton Street and Centre Mall in Brooklyn, Detective Damien Clarke seized § 87(2)(b) property.	F . Within NYPD Guidelines
G . DTS Damien Clarke	Abuse: At the 76th Precinct Stationhouse, Detective Damien Clarke searched the vehicle in which § 87(2)(b) was an occupant.	G . Within NYPD Guidelines
H . DTS Damien Clarke	Abuse: At the 76th Precinct Stationhouse, Detective Damien Clarke damaged § 87(2)(b) property.	H . Unable to Determine

Case Summary

On May 16, 2022, § 87(2)(b) filed this complaint via the CCRB website.

On May 13, 2022, Detective Damien Clarke of the 76th Precinct stopped § 87(2)(b) at the northeast corner of Clinton Street and Centre Mall in Brooklyn (**Allegation A: Abuse of Authority, Within NYPD Guidelines**). Detective Clarke spoke discourteously to § 87(2)(b) and effected a retaliatory arrest (Board Review 01) (**Allegation B: Discourtesy, Substantiated; Allegation C: Abuse of Authority, Substantiated**). At the 76th Precinct stationhouse Detective Clarke allegedly spoke discourteously to § 87(2)(b) and threatened him with the use of force (**Allegation D: Discourtesy, Unable to Determine; Allegation E: Abuse of Authority, Unable to Determine**). Detective Clarke took § 87(2)(b) vehicle into custody (**Allegation F: Abuse of Authority, Within NYPD Guidelines**) and conducted an inventory search of the vehicle (**Allegation G: Abuse of Authority, Within NYPD Guidelines**). Detective Clarke allegedly damaged § 87(2)(b) vehicle during the inventory search (**Allegation H: Abuse of Authority, Unable to Determine**). § 87(2)(b) was charged with possession of a forged instrument, criminal possession of a weapon, operating a motor vehicle without insurance, and operating an unregistered vehicle (Board Review 01).

The investigation obtained BWC video from Detective Clarke (Board Review 02 and 03) and stationhouse surveillance video from the 76th Precinct stationhouse (Board Review 04 and 05).

Findings and Recommendations

Allegation (A) Abuse of Authority: At the northeast corner of Clinton Street and Centre Mall in Brooklyn, Detective Damien Clarke stopped the vehicle in which § 87(2)(b) was an occupant.

On June 6, 2022, § 87(2)(b) was interviewed by the CCRB (Board Review 06 and 07). On December 7, 2022, Detective Clarke was interviewed by the CCRB (Board Review 08-10). On April 3, 2023, Police Officer Jovin was interviewed by the CCRB (Board Review 11 and 12).

It is undisputed that § 87(2)(b) was parked illegally prior to being stopped by Detective Clarke, and that the vehicle was missing an inspection sticker. Both Detective Clarke and Police Officer Jovin stated that Detective Clarke did not initiate the stop until after he observed § 87(2)(b) operating the vehicle; however, § 87(2)(b) maintained that his vehicle was parked when the stop was initiated.

§ 87(2)(b) stated that on May 13, 2022, at approximately 10:15 p.m., he entered the driver's seat of his black Chevrolet Impala, which was parked in a no-standing zone in the vicinity of 501 Clinton Street in Brooklyn. He noticed a marked patrol vehicle parked across the street with Detective Clarke and Police Officer Jovin seated inside. The patrol vehicle was off and there were no lights on. After § 87(2)(b) got in his vehicle, Detective Clarke pulled the patrol vehicle in front of § 87(2)(b) vehicle and turned on the lights and sirens. Over the patrol vehicle loudspeaker, Detective Clarke ordered § 87(2)(b) to open the vehicle's windows, turn the vehicle off, and throw the keys out of the window onto the hood. § 87(2)(b) complied with Detective Clarke's orders. Approximately two minutes after he was stopped, four additional patrol vehicles arrived on scene. Between eight and ten officers encircled § 87(2)(b) vehicle. Detective Clarke introduced himself to § 87(2)(b) as "Detective Clarke" and informed him that

the interaction was being recorded. He then asked § 87(2)(b) for his license, insurance, and vehicle registration. § 87(2)(b) presented the requested documents. During his CCRB interview, § 87(2)(b) confirmed the veracity of the information included in the arrest report (Board Review 01) about his vehicle, i.e., the license plate and VIN numbers did not match, the vehicle was missing an inspection sticker, and it was not registered or insured in his name. The arrest report also stated that the license plate number was obstructed. § 87(2)(b) did not know what the arrest report was referring to in regard to the license plate being obstructed. § 87(2)(b) further stated that he had purchased the car from a friend several days prior and had not yet had time to insure and register it in his name.

Detective Clarke and Police Officer Jovin stated that on May 13, 2022, at approximately 10:15 p.m., they observed a dark-colored Chevrolet with dark window tints parked on Centre Mall and Clinton Street in Brooklyn, which is a pedestrian pathway that runs through the Red Hook NYCHA development. Det. Clarke stated that it is an offense to park and/or drive one's vehicle on the sidewalk or any other walkway intended for pedestrians. Upon further examination, officers observed that there was an expired EMT plaque in the window blocking the VIN number listed on the registration sticker on the dashboard, and the vehicle did not have an inspection sticker or front license plate. Police Officer Jovin further stated that he observed that the portion of the VIN that was legible on the registration sticker did not match the VIN listed on the interior dashboard of the vehicle and that the VIN number on the portion of the registration sticker that was visible appeared to be scratched out. Police Officer Jovin further stated that tampering with documents issued by New York State is an arrestable offense. Detective Clarke stated that after the initial examination of the vehicle, he went back to his vehicle and ran the vehicle's license plate number and determined that it did not correspond to any registered vehicle. At this point, Detective Clarke suspected that the vehicle may be stolen, at which point he called Police Officer Robert Wong of the Anti-Crime Unit and requested back up on scene. § 87(2)(b) then returned to his vehicle, which was facing northbound, and turned the vehicle around to face southbound toward Detective Clarke's vehicle. Once Detective Clarke observed § 87(2)(b) enter the vehicle and drive with all four wheels in motion, he moved his vehicle to block the path of § 87(2)(b) vehicle. Detective Clarke subsequently exited his vehicle with Police Officer Jovin and approached the driver's side door of § 87(2)(b) vehicle. Both Detective Clarke and Police Officer Jovin stated that it was Detective Clarke's decision to initiate the stop of § 87(2)(b) vehicle.

According to NY CLS Veh & Tr § 306 (Board Review 13), no motor vehicle shall be operated or parked on the public highways of this state unless a certificate or certificates of inspection, as required by this article, is displayed upon the vehicle or affixed to the registration certificate for the vehicle as may be determined by the commissioner. Any violation of this section that occurs while a motor vehicle is parked on the public highways of this state shall constitute a parking violation. Failure to display or produce a valid certificate of inspection is a Vehicle & Traffic Law violation and is punishable by a fine or imprisonment.

It is undisputed by all parties interviewed that § 87(2)(b) vehicle was parked illegally prior to the stop, which prompted officers to further investigate the vehicle. Both Detective Clarke and Police Officer Jovin consistently stated that prior to the stop they observed that § 87(2)(b) vehicle was missing an inspection sticker. This fact is corroborated by § 87(2)(b) statement in which he reported that his vehicle was not registered in his name and was missing an inspection sticker at the time of the incident. § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation A** is closed as **within NYPD guidelines**.

Allegation (B) Discourtesy: At the northeast corner of Clinton Street and Centre Mall in Brooklyn, Detective Damien Clarke spoke discourteously to § 87(2)(b)

Allegation (C) Abuse of Authority: At the northeast corner of Clinton Street and Centre Mall in Brooklyn, Detective Damien Clarke conducted a retaliatory arrest against § 87(2)(b)

It is undisputed that § 87(2)(b) vehicle was not registered or insured, and that the VIN number listed on the registration sticker did not match the VIN number listed on the vehicle. Additionally, both Detective Clarke and Police Officer Jovin consistently stated that the VIN number on the registration appeared to have been tampered with.

§ 87(2)(b) stated that Detective Clarke informed him that the vehicle's license plates were registered to the previous owner and that he was going to issue him a ticket. § 87(2)(b) asked why he was stopped and what he was being issued a ticket for. Detective Clarke responded, "Oh, you want to question me?" and ordered § 87(2)(b) to exit the vehicle. As § 87(2)(b) was getting out of his vehicle, Detective Clarke pulled his arm behind his back and placed him in handcuffs. Detective Clarke did not inform § 87(2)(b) what he was being arrested for. Detective Clarke and Police Officer Jovin then transported him to the 76th Precinct stationhouse. A male officer from the scene transported his vehicle to the stationhouse. On May 14, 2022, at approximately 7:00 a.m., § 87(2)(b) was presented to a lieutenant at the desk, who informed him that he had been charged with felony forgery and misdemeanor possession of a forged instrument. § 87(2)(b) was then transported to Central Booking at approximately 9:00 a.m. § 87(2)(b)

§ 87(2)(b) was subsequently released. § 87(2)(b) did not report Detective Clarke or any other officer on scene speaking to him using discourteous or profane language.

Detective Clarke and Police Officer Jovin stated that they approached § 87(2)(b) vehicle and Detective Clarke asked § 87(2)(b) for his license and registration. § 87(2)(b) provided his license and told Detective Clarke that he had the title for the vehicle but did not have the vehicle's registration. Detective Clarke did not recall whether § 87(2)(b) provided him with the title or a copy of the title. Police Officer Jovin did not see the title provided to Detective Clarke. Detective Clarke then asked § 87(2)(b) if the vehicle was registered or insured, to which § 87(2)(b) responded that he recently purchased the vehicle from a friend and that it was not registered or insured. Detective Clarke informed § 87(2)(b) that the license plate number did not correspond to the vehicle. § 87(2)(b) responded that he was aware of this. He then asked § 87(2)(b) to open the driver's side door so he could check the VIN number listed on the vehicle door. Detective Clarke wanted to check the VIN listed on the vehicle because the VIN number on the registration sticker looked altered, as if someone tried to scratch the numbers off, and he wanted to verify that the VIN number listed on the door of the vehicle matched the VIN number listed on the registration sticker. Upon comparing the two VIN numbers, Detective Clarke determined that the VIN number listed on the vehicle did not match the registration sticker. Police Officer Jovin consistently stated that the VIN number listed on the registration sticker was partially scratched off and did not match the VIN associated with the vehicle. Police Officer Jovin ran the VIN number listed on the indoor side panel of the vehicle and it did not come back to any vehicle at all. Detective Clarke conferred with his supervisor, Sergeant Mervis, about what transpired, who told him he could exercise

discretion in determining how to proceed. Detective Clarke then informed § 87(2)(b) that although the stop was considered a felony car stop due to the fact that the registration sticker appeared to have been tampered with, which constitutes criminal possession of a forged instrument, he was going to exercise discretion and only issue him summonses for the traffic violations. § 87(2)(b) responded that he was not driving when the stop was initiated and asked why the stop would be considered a felony car stop. Detective Clarke reiterated that he was not going to arrest § 87(2)(b) and would only issue him summonses for the traffic violations. § 87(2)(b) continued to question why the stop was considered a felony car stop. Detective Clarke explained that the vehicle was not registered or insured, and the registration sticker was defaced. § 87(2)(b) continued to question Detective Clarke as to why it would be considered a felony car stop and implied that Detective Clarke should not have stopped him, at which point, Detective Clarke said, “Fuck it,” while standing next to the driver’s side door of the vehicle and ordered § 87(2)(b) to exit the vehicle. Detective Clarke stated that when he said, “Fuck it,” he was talking to himself and that the comment was not directed toward § 87(2)(b). He further stated that he changed his mind and decided to arrest § 87(2)(b) as opposed to issuing him summonses due to the fact that § 87(2)(b) was arguing with him and did not seem to understand what he was saying about using his discretion to issue him summonses in lieu of the arrest. Detective Clarke was not aware of the fact that § 87(2)(b) had an active warrant at the time that he placed § 87(2)(b) under arrest and did not recall when exactly he became aware of the warrant. Detective Clarke explained during his CCRB interview that although it is not standard procedure for an officer to issue summonses in lieu of an arrest for a felony charge, he tried to let him go with summonses as a courtesy due to the fact that § 87(2)(b) was a volunteer EMT. Police Officer Jovin stated that he did not have any conversation with Detective Clarke regarding § 87(2)(b) arrest or what prompted him to change his mind.

The arrest report (Board Review 01) pertaining to the incident indicates that § 87(2)(b) was ultimately charged with one count of possession of a forged instrument, three counts of criminal possession of a weapon for three cans of mace, one count of operating a vehicle with insurances, and one count of operating an unregistered vehicle.

At 02:26 into Detective Clarke’s BWC video (Board Review 02 and 03) § 87(2)(b) tells Detective Clarke that the vehicle is not registered or insured. At 02:35, Detective Clark opens the driver’s side door to look at the VIN number listed on the vehicle. Detective Clarke asks where the vehicle title is (03:36). § 87(2)(b) responds that it is in the glove compartment and provides it to Detective Clarke. At 05:23, Detective Clarke tells Sergeant Mervis that the title § 87(2)(b) provided looks fake and that the title doesn’t match the VIN. He also mentions that § 87(2)(b) registration sticker that he said was from his old car was expired over a year; and that the vehicle did not come back as stolen but that the VIN on the title looked forged. Police Officer Jovin then approaches and informs Detective Clarke that the VIN listed on the registration sticker on the windshield did not correspond to any vehicle. Sergeant Mervis does not issue and direct orders to Detective Clarke during this conversation in regard to how to proceed. At 06:45 Detective Clarke approaches the vehicle to speak to § 87(2)(b) and § 87(2)(b) informs him that the person he bought the car from told him that the title did not match the VIN (06:59). At 07:49, Detective Clarke steps away from the vehicle and says to Police Officer Wong, “It doesn’t come back stolen or anything like that. Can’t do anything but a fucking summons. The plates don’t come back to the car and the VIN comes back to nothing at all. To me, that VIN looks like it was tampered with.” At 10:30, Detective Clarke asks Police Officer Wong what he thinks and that “the VIN is it for him.” The officer responds, “If you’re going to go with tampering of that thing, [points to title in Detective Clarke’s hand] that is a felony right then and there. He goes. It’s either he’s under, or it’s summonses.” At 11:09, Detective Clarke returns to vehicle and tells § 87(2)(b) he is going to issue him a summons and explains that he can either issue him a summons or place him under arrest

and will explain to him the reason why afterward. § 87(2)(b) asks why he was stopped, and that it was not a traffic stop. Detective Clarke attempts to respond several times and § 87(2)(b) interrupts him each time asking whether the stop was considered a traffic stop. After being interrupted for the third time, Detective Clarke says, “You know what, fuck it, get out of the car please,” and instructs § 87(2)(b) to put his hands on the car and then places him in handcuffs.

According to NYPD v. Pichardo, DAO-DCT #2015-15012 (Board Review 14), an officer is permitted to use profanity in “dynamic” situations over which they are attempting to gain control, and that the use of profanity in these instances is considered excusable and not a discourtesy. However, discourteous and profane statements made toward civilians when a situation is currently under control at the time the statement was made, are deemed to have “no legitimate purpose” other than to belittle the civilian(s) involved.

Detective Clarke stated in his CCRB interview that he used profanity while interacting with § 87(2)(b) in addition to the fact that his use of profane language was also captured on his BWC video. § 87(2)(g)

it is recommended that **Allegation B** is closed as **substantiated**.

According to NY CLS Veh & Tr § 401 (Board Review 15), no vehicle shall be operated or driven upon the public highways of this state without first being registered. If a vehicle is operated in violation of the statute, an appearance ticket or summons may be issued to the registrant of the vehicle.

NY CLS Veh & Tr § 319 (Board Review 16), requires all persons who operate a vehicle registered in New York State to produce an insurance identification card when requested by any officer. The failure to do so shall be presumptive evidence that such person was operating the vehicle without having in effect financial security required by the provisions of this chapter. Knowingly operating an uninsured vehicle is a violation punishable by a fine of at least \$150 or imprisonment of up to fifteen days.

According to NY CLS Penal § 170.20 (Board Review 17), a person is guilty of criminal possession of a forged instrument in the third degree when they possess a forged instrument with knowledge that it is forged and with intent to defraud, deceive or injure another. Criminal possession of a forged instrument in the third degree is a class A misdemeanor.

§ 87(2)(g)

he ultimately chose to arrest § 87(2)(b) § 87(2)(g) § 87(2)(b) argued with him, which is also supported by BWC video of the interaction leading up to the arrest. § 87(2)(g)

it is recommended that **Allegation C** is closed as **substantiated**.

Allegation (D) Discourtesy: At the 76th Precinct Stationhouse, Detective Damien Clarke spoke discourteously to § 87(2)(b)

Allegation (E) Abuse of Authority: At the 76th Precinct Stationhouse, Detective Damien Clarke threatened § 87(2)(b) with the use of force.

§ 87(2)(b) stated that upon arriving at the stationhouse, he was lodged in a holding cell. After approximately two hours, Detective Clarke entered the holding cell area and asked him why he had handcuffs and a bulletproof vest in his vehicle. § 87(2)(b) told him that he was a volunteer EMT and a security guard. He informed Detective Clarke that his EMS ID was in his wallet and security guard credentials were in his vehicle. Detective Clarke left the holding cell area and returned approximately one hour later, at which point, § 87(2)(b) asked him what he was arrested for. Detective Clarke told him that he was going to let him go with a ticket, but ultimately decided to arrest him because § 87(2)(b) had questioned him. § 87(2)(b) started to respond, and Detective Clarke told him to be quiet and said, “If you don’t shut the fuck up, you’re going to see what is going to happen.”

Detective Clarke stated that after arresting § 87(2)(b) he transported him to the 76th Precinct stationhouse. He then processed § 87(2)(b) arrest and lodged him in a holding cell. Detective Clarke explained to § 87(2)(b) that after he is arraigned, he could return to the stationhouse with his identification to retrieve his vouchered property. After lodging § 87(2)(b) in a holding cell, Detective Clarke did not have any further interaction with him on this date. Detective Clarke stated that he did have a conversation with § 87(2)(b) at the stationhouse pertaining to why he was arrested. He denied saying to § 87(2)(b) during this conversation, “If you don’t shut the fuck up, you’re going to see what’s going to happen,” or using any profane or discourteous language while speaking with § 87(2)(b) at the stationhouse.

Police Officer Jovin stated that Detective Clarke was responsible for processing the arrest and would have been responsible for fingerprinting § 87(2)(b) after he was lodged in the holding cell, but he was not aware of any additional interactions outside of that. Police Officer Jovin did not hear Detective Clarke say to § 87(2)(b) “If you don’t shut the fuck up, you’re going to see what’s going to happen,” in response to § 87(2)(b) asking why he was arrested. He further stated that he did not have any conversations with Detective Clarke regarding § 87(2)(b) after he was detained in the holding cell.

Surveillance video obtained from the 76th Precinct stationhouse first floor fingerprinting station (Board Review 04 and 05) shows Detective Clarke and Police Officer Jovin lodge § 87(2)(b) in a holding cell. At 10:59:44, the first floor Cell #1 camera shows Detective Clarke returning to the holding cell area with paperwork. The video does not have audio, but it appears as though there is a verbal exchange between § 87(2)(b) and Detective Clarke during the time that Detective Clarke is in the holding cell area. Detective Clarke leaves the holding cell area at 11:00:52 and is not seen in the holding cell area again.

§ 87(2)(g)

§ 87(2)(b) it is recommended that Allegations D and E are closed as **unable to determine**.

Allegation (F) Abuse of Authority: At the northeast corner of Clinton Street and Centre Mall in Brooklyn, Detective Damien Clarke seized § 87(2)(b) property.

Allegation (G) Abuse of Authority: At the 76th Precinct Stationhouse, Detective Damien Clarke searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (H) Abuse of Authority: At the 76th Precinct Stationhouse, Detective Damien Clarke damaged § 87(2)(b) property.

It is undisputed that after § 87(2)(b) was arrested, officers transported his vehicle to the 76th Precinct stationhouse, where it was searched.

§ 87(2)(b) stated that he did not know who conducted the search of his vehicle and did not witness the search. He further stated that when he went to the 76th Precinct stationhouse on May 24, 2022, at approximately 3:30 p.m. to pick up his vehicle, he noticed the license plates had been removed and the “cushion” on the ceiling of the vehicle near the overheard light was ripped off. He also noticed that his EMS radio and emergency light were missing from the vehicle. § 87(2)(b) was provided with copies of the property vouchers from his arrest and the EMS radio and emergency light kit were not included. He then spoke to Detective Clarke at the stationhouse and inquired about the missing items. Detective Clarke told him that he did not know what he was talking about and that all seized items had been returned. § 87(2)(b) subsequently left the stationhouse and had no further interaction with Detective Clarke.

Detective Clarke stated that he conducted an inventory search of § 87(2)(b) vehicle at the stationhouse and vouchered the vehicle and its contents per standard procedure. Detective Clarke did not recall if any other officers were involved in the search of § 87(2)(b) vehicle. Detective Clarke found an emergency light bar attached to the interior roof of the vehicle via suction cups, bulletproof vests, OC spray cans, an FM transceiver radio, and various tools inside the vehicle. Detective Clarke removed the light bar from the interior of the vehicle but denied tearing or damaging the upholstery in the process. Detective Clarke vouchered all of the items in § 87(2)(b) vehicle for safekeeping, with the exception of the OC spray cans, which were considered arrest evidence and therefore not returned to § 87(2)(b). He further stated in reference to § 87(2)(b) allegation that his vehicle was returned without the license plates, that if a vehicle is seized and it is determined that the plates do not correspond to the vehicle, the plates are typically removed from the vehicle and are not returned. Detective Clarke did not recall interacting with § 87(2)(b) at all on May 24, 2022, or on any other date after his arrest. He further stated that detectives do not typically speak to civilians regarding missing or improperly vouchered items.

Police Officer Jovin stated that he did not know who conducted the search of § 87(2)(b) vehicle and that he was not involved in or present for the search. Police Officer Jovin did not voucher any of § 87(2)(b) property. He did not recall whether any of § 87(2)(b) property, nor did he recall speaking with Detective Clarke about items found in the vehicle.

Detective Clarke’s BWC video (Board Review 02 and 03) does not capture the search of § 87(2)(b) vehicle.

The property vouchers obtained by the investigation (Board Review 18) indicate that an FM transceiver radio was vouchered for safekeeping and returned to § 87(2)(b) on May 15, 2022. Additionally, an emergency light kit was vouchered as arrest evidence with the invoice status listed as open.

In People v. Valerio, 274 A.D.2d 950 (App. Term, 4th Dept., 2000), it was determined that officers, after approaching an improperly-parked vehicle, were authorized to impound the defendant's vehicle upon determining that the vehicle was unregistered (Board Review 19).

In People v. Johnson, 1 N.Y.3d 252 (Board Review 20), it was determined that following a lawful arrest of the driver of a vehicle that must then be impounded, the police are authorized to conduct an inventory search of the vehicle.

According to NY CLS Veh & Tr § 375 (Board Review 21), one or more blue lights or combination blue and red lights or combination blue, red and white lights may be affixed to a police vehicle, fire vehicle, ambulance, emergency ambulance service vehicle, and county emergency medical services vehicle provided that such blue light or lights shall be displayed on a police vehicle, fire vehicle, ambulance, emergency ambulance service vehicle, and county emergency medical services vehicle for rear projection only. In the event that the trunk or rear gate of a police vehicle, fire vehicle, ambulance, emergency ambulance service vehicle, and county emergency medical services vehicle obstructs or diminishes the visibility of other emergency lighting on such vehicles, a blue light may be affixed to and displayed from the trunk, rear gate or interior of such vehicles. Such lights may be displayed on a police vehicle, fire vehicle, ambulance, emergency ambulance service vehicle, and county emergency medical services vehicle when such vehicles are engaged in an emergency operation. Nothing contained in this subparagraph shall be deemed to authorize the use of blue lights on police vehicles, fire vehicles, ambulances, emergency ambulance service vehicles, and county emergency medical services vehicles unless such vehicles also display one or more red or combination red and white lights as otherwise authorized in this subdivision.

§ 87(2)(g) it is recommended that
Allegations F and G are closed as within NYPD guidelines.

While § 87(2)(b) FM transceiver radio and emergency light kit were both seized during the search of the vehicle, both items were properly documented with vouchers. § 87(2)(g)
it is recommended that
Allegation H is closed as unable to determine.

Civilian and Officer CCRB Histories

- § 87(2)(b)

- Detective Clarke has been a member of service for 19 years and has been a subject in nine CCRB complaints and 17 allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of November 14, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (Board Review 23).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad: 15

Investigator:	<u>Julia Vittore</u>	<u>Inv. Julia Vittore</u>	<u>06/16/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Owen Godshall</u>	<u>SI Owen Godshall</u>	<u>06/20/2023</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date